

22VECV02624 22VECV02624

County: los-angeles

Division: Civil Law and Motion

Department: 107

Hearing date: 2026-09-01

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Case Number: 22VECV02624 Hearing Date: September 1, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Mijean Song,

Plaintiff.

v.

American

Honda Motor Co., Inc.

Defendant.

Case Number Department

22VECV02624 107

COURT'S [TENTATIVE]

ORDER RE:

Motion for Attorney Fees

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Grant in the reduced sum of
\$75,864.45

I.

BACKGROUND

On or about April 17, 2018,
Plaintiff Mijean Song ("Plaintiff") entered into a warranty contract with
Defendant American Honda Motor Co., Inc. ("Defendant") regarding a 2018 Honda
HR-V (the "Vehicle"). (Complaint ¶¶ 6.)
The Vehicle was defective. (Complaint ¶¶ 11.)

On December 30, 2022, Plaintiff
filed a complaint against Defendant and Does 1 through 10 alleging causes of
action for: (1) violation of subdivision (D) of Civil Code section 1793.2; (2)
violation of subdivision (B) of Civil Code section 1793.2; (3) violation of
subdivision (A)(3) of Civil Code section 1793.2; and (4) breach of the implied
warranty of merchantability (Civil Code sections 1791.1; 1794; and 1795.5).

On November 13, 2025, Plaintiff filed a notice of
settlement of entire case.

On January 29, 2026, Plaintiff filed a motion for
attorneys' fees, costs, and expenses (the "Motion"). As of August 27, 2026, no
opposition has been filed.

II.

LEGAL

STANDARD

California Civil Code section 1794,
subdivision (d) states:

If the buyer prevails in
an action under this section, the buyer shall be allowed by the court to
recover as part of the judgment a sum equal to the aggregate amount of costs
and expenses, including attorney's fees based on actual time expended, determined

by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

“The plain wording of the statute requires the trial court to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred – both from the standpoint of time spent and the amount charged.” (Robertson v. Fleetwood Travel Trailers of California, Inc. (“Robertson”) (2006) 144 Cal.App.4th 785, 817, original italics.) The “prevailing party has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount.” (Id. at pp. 817-818.) “The amount of an attorney fee to be awarded is a matter within the sound discretion of the trial court.” (Id. at p. 822.)

“[T]he lodestar adjustment method is the prevailing rule for statutory attorney fee awards to be applied in the absence of clear legislative intent to the contrary[.]” (Robertson, supra, 144 Cal.App.4th at p. 818.) The lodestar adjustment method “requires the trial court to first determine a touchstone or lodestar figure based on a careful compilation of the actual time spent and reasonable hourly compensation for each attorney. [Citation] The touchstone figure may then be augmented or diminished by taking various relevant factors into account, including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award.” (Id. at p. 819.) However, a trial court is “not required to apply a multiplier.” (Id. at p. 822, original italics.)

III.

DISCUSSION

Plaintiff requests the court take judicial notice of various court orders. The court may decline to take judicial notice of materials that are not “necessary, helpful, or relevant.” (Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison (1998) 18 Cal.4th 739, 748, fn. 6.) The orders are not necessary, helpful, or relevant to the court’s ruling on the Motion. Plaintiff’s requests are denied.

Plaintiff moves for an order requiring Defendant to pay Plaintiff attorneys' fees, costs, and expenses in the sum of \$123,905.68. (Motion p. 2.) This reflects \$79,013.50 in fees, a 1.35 enhancement increasing the award by \$27,654.73, costs and expenses in the sum of \$13,237.45, and an additional \$4,000.00 in fees to review the opposition, draft a reply, and attend the Motion's hearing. (Motion p. 2.)

Hourly

Rates:

Plaintiff's

counsels and law clerks billed at rates ranging from \$325.00 per hour to \$695.00 per

hour.

(Chandy Declaration Ex. 1 pdf pp. 17-18.)

Plaintiff requests hourly rates of

up to \$345.00 per hour for time billed by law clerks on this matter. The court finds that hourly rate exceeds what is reasonable for law clerks who are not billing as attorneys licensed in the State of California. The court finds \$150.00 per hour reasonable for law clerks Lara Abdo, Gunjeet Ahluwalia, Camilo Fernandez, Aarushi Khanna, Byron Mobley, Yevgeniya Skovinskaya, Carolyne Tarus, Jorge Tole, and Ellen Zakharian.

This results in a \$5,671.50 reduction of fees.

The court finds the remaining

hourly rates are reasonable. (See *Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, 464, 473-474 [concluding a trial court did not abuse its discretion in finding a \$575 hourly rate was appropriate in a Song-Beverly Consumer Warranty Act action.])

Time

Billed:

Plaintiff's

counsels and law clerks billed a total of 162.60 hours on this matter. (Chandy

Declaration

Ex. 1 pdf p. 15.)

Some

of the tasks billed are excessive. It is appropriate to reduce a fee award because of “a lack

of

efficiency in litigating the case and a lack of clarity in tasks performed.”

(See Mikhaeilpoor v.

BMW of North America, LLC (2020) 48 Cal.App.5th 240,

256 [“Further, counsel’s billing entries demonstrate a lack of efficiency in litigating the case and a lack of clarity in tasks performed. This evidence supports the trial court’s finding that plaintiff’s counsel failed to act efficiently.”]) Plaintiff’s counsels are experienced in this area of the law.

Thus, the court will adjust the reflected time to reflect the court’s understanding that the time billed should reflect Plaintiff’s counsels’ expertise in this area of the law.

Plaintiff

states in the Motion:

Although 26 SLP attorneys and 7 law

clerks were staffed on this case, only 9 attorneys and 1 law clerk (Ian McCallister, Nino Sanaia, David Lunn, Anita Marks, Lara Abdo, Zachary Hutsell, Regina Liou, Rabiya Tirmizi, Hunter McMillan, and Daniel Law) accounted for 101.1 hours out of the 162.6 total hours billed (63%) with other attorneys performing non-duplicative tasks, such as: Ms. Washington billing a total of 2.0 hours for preparing for and attending the hearing on the Ex Parte Application.

(Motion

p. 9 fn. 6.)

Plaintiff

states 33 timekeepers billed on this matter, but the court counts 32 timekeepers listed in

Exhibit

1. (Chandy Declaration Ex. 1 pdf pp. 17-18.) Using 32 timekeepers for a non-

complex Song Beverly action raises

concerns about Plaintiff's counsels' efficiency. Specifically, the court notes that Plaintiff's counsels repeatedly billed significant time preparing for and appearing at hearings and drafting hearing outcomes. (See Chandy Declaration Ex. 1.) This indicates to the court that using numerous timekeepers lead to inefficiencies because counsels billed excessive time familiarizing themselves with the matter and taking notes to familiarize others with the matter.

Finally, Plaintiff's counsel Payam

Shahian states "I have also already removed or reduced any entry that I believed may be unnecessary, duplicative, excessive, or otherwise—something I do as a matter of practice." (Shahian Declaration ¶ 3.) The court granted Defendant monetary sanctions for the motion to compel deposition of Defendant's person most knowledgeable in the sum of \$3,800.00. (10/10/25 Minute Order p. 6.) Plaintiff seeks attorneys' fees relating to the motion to compel deposition of Defendant's person most knowledgeable, including the exact sum the court already awarded. (Chandy Declaration Ex. 1 pdf p. 14.) The court has reason to doubt that Plaintiff's counsel removed duplicative fees.

Date

Task

Hours Requested

Adjusted Hours

Hourly Rate

Deduction

12/05/22

Draft Complaint and
Supporting Documents

1.50

1.00

\$610.00

\$305.00

12/06/22

Review and Revise
Complaint and Supporting Documents

0.50

0.00

\$550.00

\$275.00

07/11/23

Prepare for and
Attend Hearing re CMC; Draft Hearing Outcome re same.

1.40

1.00

\$475.00

\$190.00

12/30/24

Continue drafting
Mijean Song v Honda MTC PMK.

8.0

1.00

\$395.00

\$2,765.00

02/10/25

Begin drafting

Plaintiff's reply in support of MTC PMK and supporting documents.

2.0

0.50

\$395.00

\$592.50

02/19/25

Prepare for and

Attend Hearing re MTC Deposition of Person Most Knowledgeable; Draft Hearing

Outcome re same.

1.50

1.00

\$445.00

\$222.50

03/12/25

Begin drafting IDC

statement.

1.70

0.50

\$345.00

\$414.00

03/20/25

Draft email to OC
regarding IDC.

0.10

0.00

\$395.00

\$39.50

03/20/25

Prepare for and
attend IDC ; draft hearing outcome memo.

0.80

0.40

\$395.00

\$158.00

07/25/25

Prepare for and
attend Hearing re IDC; Draft Hearing Outcome re same.

0.90

0.40

\$390.00

\$195.00

07/31/25

Correspondence with
OC regarding Deposition Scheduling / Follow up on IDC.

0.50

0.20

\$475.00

\$142.50

08/01/25

Prepare for and
attend Hearing re Motion to Continue Trial; Draft Hearing Outcome re Same.

1.80

1.00

\$525.00

\$420.00

09/12/25

Draft Plaintiff's
Motion MTC PMK Deposition and supporting documents.

8.00

0.00

\$475.00

\$3,800.00

10/02/25

Revise and Finalize
Notice of Non-Opposition.

0.50

0.00

\$475.00

\$237.50

10/03/25

Finalize Draft
notice of non opposition to MTC PMK.

0.50

0.00

\$150.00

\$75.00

01/23/26

Draft Fee Motion and
Supporting Documents

4.70

2.00

\$150.00

\$405.00

01/23/26

Review and Audit

Billing. Review and Revise Declaration ISO Fee Motion.

1.30

0.20

\$435.00

\$478.50

(Chandy

Declaration Ex. 1 pdf pp. 10-15.)

The

adjustments above reflect a \$10,715.00 reduction in the requested fees.

The court finds the reasonable

number of hours expended on this matter was 136.10 hours, at the hourly rates identified above.

The court denies Plaintiff's

request for an additional \$4,000.00 in fees to review the opposition, draft a reply, and attend the Motion's hearing. (Motion p. 11.) No opposition was filed, so fees for reviewing the opposition and drafting a reply are not warranted. Further, Plaintiff does not provide the hourly rate requested, so the court denies the request for fees relating to the Motion's hearing.

Lodestar

Multiplier:

Plaintiff

requests a 1.35 lodestar multiplier. (Motion p. 9.)

The

court understands that litigating Song-Beverly actions requires technical expertise. But “a trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1139.) Here, Plaintiff’s counsels displayed the skill, proficiency, and technical expertise commensurate with counsels’ experience and specialty. Nothing before the court indicates Plaintiff’s counsels’ representation exceeded that which would have been provided by other attorneys of comparable skill and experience billing at counsels’ rates.

Accordingly, the court denies Plaintiff’s request for an enhancement.

Costs:

Plaintiff requests \$13,237.45 in costs. (Motion p. 10.)

Plaintiff filed no memorandum of costs. However, Plaintiff submits the 998 Offer that states:

AHM

will allow the Court to determine, in a noticed motion filed pursuant to Civil Code Section 1794(d) and/or by Plaintiff’s filing of a memorandum of costs, the attorney’s fees, costs, and expenses recoverable under Civil Code Section 1794(d). There is no admission of liability by this Offer.

(Chandy Declaration Ex. 6 pdf pp. 44.)

The court interprets this provision as permitting Plaintiff to request costs by noticed motion.

Defendant filed no opposition disputing this interpretation.

Plaintiff’s request for costs is granted in the requested sum of \$13,237.45.

IV.

CONCLUSION

For the foregoing reasons, the
request for attorneys' fees is granted in the reduced sum of

\$62,627.00

to be paid by Defendant to Plaintiff's counsel within thirty (30) days of this
order. The request for costs is granted in the sum of \$13,237.45, to be paid by
Defendant to Plaintiff's counsel within thirty (30) days of this order.

Dated: September 1, 2026 _____ Hon. Eric
Harmon

Judge
of the Superior Court